

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #13	CCRB Case #: 201708503	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 10/12/2017 9:30 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 4/12/2019	Precinct: 67
Date/Time CV Reported Mon, 10/16/2017 1:58 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/16/2017 1:58 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Fabian Modesto	08846	950897	067 PCT
2. POM Richard Ortega	02674	956991	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Fabian Modesto	Abuse: Police Officer Fabian Modesto drew his gun.	A . Closed - Pending Litigation
B . POM Richard Ortega	Abuse: Police Officer Richard Ortega drew his gun.	B . Closed - Pending Litigation
C . POM Fabian Modesto	Force: Police Officer Fabian Modesto pointed his gun at § 87(2)(b)	C . Closed - Pending Litigation
D . POM Richard Ortega	Force: Police Officer Richard Ortega pointed his gun at § 87(2)(b)	D . Closed - Pending Litigation
E . POM Fabian Modesto	Force: Police Officer Fabian Modesto fired his gun at § 87(2)(b)	E . Closed - Pending Litigation

Case Summary

On October 16, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone. § 87(2)(b) filed this complaint on behalf of her § 87(2)(b) son, § 87(2)(b) § 87(2)(b) was not witness to this incident. This complaint involves an officer involved shooting, § 87(2)(g)

On October 19, 2017, the CCRB contacted § 87(2)(b) by telephone. § 87(2)(b) stated that § 87(2)(b) had been shot in his leg in the ephemeral artery by the police during this incident, and as such, was in critical condition at the hospital and did not have a known discharge date. § 87(2)(b) further stated that § 87(2)(b) was not allowed visitors beyond immediate family. Lastly, § 87(2)(b) stated that a § 87(2)(b) female family friend was present during the incident, and she would attempt to speak to their parents to see if she could participate in the incident. § 87(2)(b) declined to provide the name of the witness. On October 20, 2017, the CCRB attempted to reach § 87(2)(b) by telephone, and left a voicemail. On October 31, 2017, the CCRB contacted § 87(2)(b) by telephone, and she stated that § 87(2)(b) remained in the ICU, did not have a discharge date from the hospital, and was still not allowed visitors. § 87(2)(b) also stated that she had not yet spoken to the parents of the witness, and would reach out to them. On November 9, 2017, the CCRB attempted to reach § 87(2)(b) by telephone, and left a voicemail. On November 15, 2017, the CCRB contacted § 87(2)(b) by telephone, and she stated that § 87(2)(b) was home from the hospital, and was willing to provide a statement. § 87(2)(b) stated that she was at work, and would contact the CCRB when she got home after she checked § 87(2)(b)'s schedule and knew what days he was free. § 87(2)(b) stated that § 87(2)(b) did not have a cellphone, and could only be reached via her telephone number. § 87(2)(b) also stated that she had provided the undersigned's name and contact information to the mother of the witness. On November 16, 2017, the CCRB attempted to contact § 87(2)(b) by telephone, and left a voicemail. On November 17, 2017, the CCRB contacted § 87(2)(b) by telephone, and she put § 87(2)(b) on the telephone, who scheduled an appointment to provide an in-person statement to the CCRB for November 28, 2017. § 87(2)(b) confirmed that he could best be reached via his mother's telephone number. The CCRB spoke to § 87(2)(b) to confirm the date and time of this appointment. On November 27, 2017, a text message reminder was sent to § 87(2)(b). On November 28, 2017, the CCRB contacted § 87(2)(b) by telephone to confirm the appointment. § 87(2)(b) stated that her attorney, § 87(2)(b), had advised her to have the CCRB contact him before any statements were given, and as such, wanted to cancel the appointment.

On November 29, 2017, the CCRB attempted to reach § 87(2)(b) by telephone and left a message. On November 30, 2017, the CCRB contacted § 87(2)(b) by telephone. § 87(2)(b) stated that she would speak to § 87(2)(b) to request that he reach out to the CCRB. Between the dates of December 12, 2017, and January 5, 2018, the CCRB attempted to reach § 87(2)(b) by telephone on six occasions, and left a message on each attempt.

Between the dates of January 10, 2018, and January 29, 2018, three unreturned letters were sent to § 87(2)(b) and three unreturned letters were sent to § 87(2)(b). A search of the New York City Department of Corrections inmate lookup website revealed that neither § 87(2)(b) nor § 87(2)(b) are currently incarcerated. § 87(2)(g)

it is recommended that this case be **closed-pending litigation**.

Squad No.: 13

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date